

**NEW YORK STATE SUPREME COURT
KINGS COUNTY**

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SHENIKA BURGIN,

SUMMONS

Plaintiff,

Index #

-against-

CITY OF NEW YORK, POLICE OFFICER
DAMIAN DOUGLAS #14554, POLICE
OFFICER DESIMONE #3666, POLICE
SARGENT GASPARI, POLICE OFFICERS
JOHN and JANE DOES 1 through 10,

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

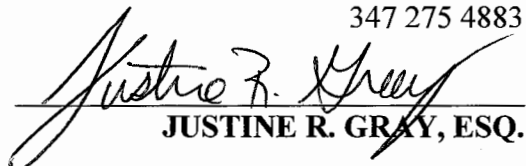
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is that where the cause of action arose, Brooklyn, New York.

Dated: Bronx, New York
March 18, 2015

PAULOSE PLLC
5676 Riverdale Avenue, Suite 314
Bronx, NY 10471
347 275 4883

By:


JUSTINE R. GRAY, ESQ.

**NEW YORK STATE SUPREME COURT
KINGS COUNTY**

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SHENIKA BURGIN,

COMPLAINT

Plaintiff,

Index #

-against-

CITY OF NEW YORK, POLICE OFFICER
DAMIAN DOUGLAS #14554, POLICE
OFFICER DESIMONE #3666, POLICE
SARGENT GASPARI, POLICE OFFICERS
JOHN and JANE DOES 1 through 10,

Defendants.

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INTRODUCTORY STATEMENT

1. This is a civil rights action brought by plaintiff SHENIKA BURGIN pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, 42 USC §§ 1983 and 1988, and under the laws of the State of New York. One evening, during a routine traffic stop, plaintiff was accosted by New York City Police Officer defendants. Plaintiff now seeks redress against the defendants for their unlawful, unnecessary, and unreasonable use of force.

PARTIES

2. Plaintiff SHENIKA BURGIN is a thirty-one year old African American woman who resides in New York, New York.

3. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable section of the aforementioned municipal corporation, CITY OF NEW YORK.

5. That at all times hereinafter mentioned, the individually named defendants POLICE OFFICER DAMIAN DOUGLAS #14554, POLICE OFFICER DESIMONE #3666, POLICE SARGENT GASPARI, and POLICE OFFICERS JOHN and JANE DOES 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

STATEMENT OF FACTS

8. After an evening out, on or about March 10, 2014, plaintiff was driving herself and a friend to a diner located near the East Flatbush section of Brooklyn. As plaintiff pulled into the diner parking lot, they were immediately stopped by a New York City police vehicle.

9. Defendant police officer DOUGLAS approached plaintiff's car and requested her driver's license and registration. In order to comply with defendant police

officer DOUGLAS' order, plaintiff asked her friend in the passenger's seat to hand her the driver's license from her purse located near his feet.

10. However, her friend passed plaintiff her military identification instead of passing plaintiff her driver's license. Plaintiff is an army veteran who completed two tours in Iraq. Before plaintiff realized the mistake, of handing the officer her military identification rather than her driver's license, defendant police officer DOUGLAS became irritated and directed plaintiff to exit the car.

11. Plaintiff hesitated and questioned the officer as he had not yet informed her of the reason for the stop. Then, suddenly, defendant police officer DOUGLAS threw open the car door, grabbed plaintiff, and forcibly pulled her out of the car. Plaintiff continued to ask defendant police officer DOUGLAS what was happening.

12. Defendant police officer DOUGLAS was treating the plaintiff with such brutality that her friend said, "chill, she's a female."

13. Defendant police officer DOUGLAS threw plaintiff against her car, handcuffed her and shoved her into the back of a police car. Plaintiff informed the defendant officer that she has PTSD and a fear of small spaces due to an incident that occurred while plaintiff was stationed in Iraq.

14. Defendant police officer DOUGLAS ignored her as other officers arrived on the scene. The defendant police officers began taunting plaintiff and mocking her for being an army veteran. One of the defendant police officers spat at plaintiff through the window after shining his flashlight in her eyes.

15. Not one of the defendant officers made any attempt to prevent the taunting and unnecessarily cruel treatment of plaintiff.

16. One of the defendant police officers attempted to force plaintiff's feet into the back of the police car against her protests due to her PTSD fear of confinement.

17. Shortly thereafter another defendant police officer approached plaintiff and sprayed her with pepper spray, twice, stating, "I bet you don't remember that from the Army" as other defendant officers laughed at plaintiff.

18. A short time later an ambulance arrived to take plaintiff to the hospital. Two of the defendant officers snatched plaintiff out of the back of the police car and lifted up her shirt, exposing plaintiff's breasts to the other defendant police officers, plaintiff's friend, and numerous spectators who had exited the diner due to all of the commotion.

19. Plaintiff kept repeating, "I'm not resisting," but the defendant police officers continued to accost plaintiff. The defendant police officers threw plaintiff onto the concrete. Plaintiff was held on the ground by one of the defendant police officer's knees on the back of plaintiff's head, pressing her face into the ground.

20. Thereafter, plaintiff was taken to Bookdale University Hospital in an ambulance.

FIRST CLAIM

42 USC § 1983/FOURTEENTH & FOURTH AMENDMENTS

EXCESSIVE FORCE

21. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

22. By reason of the foregoing, and by using gratuitous, excessive, and unconscionable force, and by failing to prevent other defendants from doing so, the

defendants deprived plaintiff of her rights, remedies, privileges, and immunities guaranteed to every citizen, secured by the 42 USC § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution to be free from gratuitous and excessive force.

23. Defendants acted under the pretense and color of state law and in their individual and official capacities and within the scope of their employment as police officers and employees. The defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of her constitutional rights secured by 42 USC § 1983.

24. As a direct and proximate result of defendants' actions, plaintiff sustained damages in excess of the jurisdiction of any other court.

SECOND CLAIM

ASSAULT UNDER THE LAWS OF THE STATE OF NEW YORK

25. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

26. On or about September 23, 2014, plaintiff filed a petition pursuant to General Municipal Law 50-e(5) for leave to serve a late notice of claim.

27. On or about February 3, 2015, Honorable Kathryn Freed granted plaintiff's motion allowing plaintiff to present and file a Notice of Claim.

28. On or about February 4, 2015, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

29. More than thirty (30) days have elapsed since the filing of the aforesaid Notice of Claim, as required under General Municipal Law 50-i(1)(b).

30. The action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued as required under General Municipal Law 50-i(1)(c).

31. Plaintiff has complied with all conditions Precedent to maintaining the instant action.

32. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

33. As a result of the foregoing, defendant POLICE OFFICERS DOUGLAS, DESIMONE, JOHN and JANE DOES 1 through 10, and POLICE SARGENT GASPARI placed, or conspired or aided to place, plaintiff in apprehension of imminent harmful and offensive bodily contact.

34. Defendant CITY OF NEW YORK is liable to the plaintiff for this assault under the theories of Respondeat Superior.

35. As a direct and proximate result of the defendants' actions, plaintiff sustained damaged.

THIRD CLAIM

BATTERY UNDER THE LAWS OF THE STATE OF NEW YORK

36. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

37. As a result of the foregoing, Defendant POLICE OFFICERS DOUGLAS, DESIMONE, JOHN and JANE DOES 1 through 10, and POLICE SARGENT GASPARI made, or conspired or aided to make, offensive contact with the plaintiff without privilege or consent.

38. Defendant CITY OF NEW YORK is liable to the plaintiff for this battery under the theories of Respondeat Superior.

39. As a direct and proximate result of the defendants' actions, plaintiff sustained damaged.

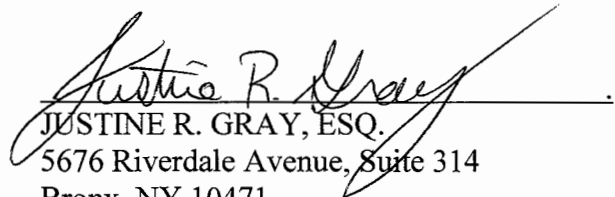
PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that the Court grant the following relief jointly and severally against defendants:

1. Compensatory damages in an amount to be determined at trial;
2. Punitive damages in an amount to be determined at trial;
3. An order awarding attorneys' fees and costs; and
4. Such other or further relief as the Court may deem appropriate.

Dated: Bronx, NY
March 18, 2015

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